

QIDDUSH ON THE FIRST NIGHT OF SHABU'OT

There are some communities that have the custom to wait until nightfall before making Qiddush on the first night of Shabu'ot. The reasoning for this practice is in order to wait until the last day of the 'Omer is completely over before beginning the holiday of Shabu'ot. The Torah commanded us to count seven complete weeks, and the seventh week becomes complete when the final day of the count is completely over.

We first find this custom recorded by R Abraham HaLevy Horowitz (16th century Poland) in his book 'Emeq B'rakhah. He wrote the following: "I received (a tradition) from my teacher the Gaon MaHaRaSh from Lublin (16th century Poland) who received an oral tradition from the Gaon Rabbi Ya'aqob Pollack (15th century Poland), may his memory be blessed, not to recite Qiddush on the first night of Shabu'ot until after the stars come out...and do not answer me from the fact that we pray 'Arbit before sunset (on the first night of Shabu'ot) as that is no indication, since the Talmud (Berakhot 27b) reported that Rab prayed ('Arbit) of Shabbat on 'Ereb Shabbat and R Yoshiah prayed ('Arbit) of Mossae' Shabbat on Shabbat, and do not ask with regards to the Qiddush that the Hazzan recites in the Synagogue, since that is only for the guests and it does not look like he is detracting from the seven complete weeks, like it would when each individual would recite Qiddush for himself before sunset." This custom was quoted by some later authorities including the Magen Abraham, the Ture' Zahab and the P'ri Hadash.

What was the custom of Halab with regards to Qiddush on the first night of Shabu'ot? R Efrayim Laniado (died 1805) who was the Chief Rabbi of Halab (the last in a direct line of Laniado Chief Rabbis of Halab dating back to the 16th century) from 1794-1805 wrote the following in his book Degel Mahaneh Efrayim: "I see this by the Rabbi Mas-at Binyamin (16th century Poland)...on the first night of the holiday of Shabu'ot we wait to make Qiddush until it's actually night because if we make Qiddush before night, a little bit of the 49th day of the counting will be missing..." And regarding this quotation Rabbi Laniado stated: "And even though his words make sense, that the weeks must be complete, in any case we do not find this in the Gemara or Rishonim that they prohibited this (making Qiddush early) except only on the night of Pesah that the Gemara said; "And a person should not eat until it is dark", and this was ruled by the Tur OH Siman 472, and Maran, and the Rosh and the Terumat HaDeshen that discussed this, examine the Bet Yosef there, and they did not require waiting, only on the night of Pesah, and if this that you also have to wait on Shabu'ot until dark, since the Gemara and Posqim discussed this regarding the night of Pesah, and they excluded other Yamim Tobim and Shabbatot, that you do not have to wait until dark, they would not have refrained from informing us that also on the night of Shabu'ot, that you have to wait until dark, but rather surely on the night of Shabu'ot you do not have to wait until dark."

Rabbi Laniado then went on to show that the Tosafot and the Rosh in Menahot explain Temimot as counting before dark on the first night of the 'Omer, not as waiting until after dark on the first night of Shabu'ot. He explains that this might be because it's preferable to add Qodesh to Hol and make Qiddush early, rather than to wait until after dark for Temimot, or because the holiday begins at sunset regardless and waiting for Qiddush has

no relevance to Temimot. And because the Tosafot (and Maran) allow counting after sunset, it is not necessary to wait until nightfall for Qiddush, since it is already Temimot after sunset. Likewise Temimot is also MiD'Rabbanan in our times and therefore it is not necessary to wait until nightfall. Therefore Rabbi Laniado concludes: "Regarding the law, the true law is that it is not necessary to wait for Qiddush on the night of Shabu'ot until dark, not like the Rabbi Mas-at Binyamin, and this is simple."

From here we see that a custom that originated in Poland in the 15th century, first became known in Halab in 1800, and was rejected Halakhically by the Chief Rabbi at that time. However there are Sephardic Rabbis that included this custom in their writings. Rabbi Laniado also found it in the Shiyere' Knesset HaG'dolah (17th century Turkey). It is found in the P'ri Hadash (17th century Italy and Jerusalem), the Shulhan Gaboha (18th century Greece) and even in the Bet HaBehirah by R Abraham Hamway (R Hamway does not describe it as the custom of Halab as he does when he records customs from his birthplace). R Hayyim Palaji (19th century Turkey) brings both the custom of waiting and the opinion of the Ya'BeSS (18th century Germany) who was very lenient with this. The custom to wait is also found in the Ben Ish Hai and in the Kaf HaHayyim (Sofer).

H 'Obadyah Yosef raises two problems with this custom in Yehaveh Da'at (6:30). Firstly, the 'Emeq B'rakhah noted that it was customary to pray 'Arbit early, and only to wait for Qiddush, based on the Gemara in Berakhot (27b). However according to that same Sugya you can also recite Qiddush early. Secondly the Gemara never taught the law of waiting for Qiddush on the first night of Shabu'ot from the Pasuq of "Temimot Tihyena", and it's a known Halakhic principle that we can not derive laws from Pesuqim on our own. A law can only be derived from a Pasuq by the Gemara or Midr'she' Halakhah. Still in all H 'Obadyah concluded that it's proper to wait until nightfall to make Qiddush when it does not cause undue hardship.

It is reported that when H Matloub 'Abadi A"H was asked about making Qiddush early on the first night of Shabu'ot, his response was that since we do not find this stringency in Maran or HaRambam that we don't have to be concerned with it, and that we may make Qiddush early. It is also known that H Barukh A"H would always pray early and make Qiddush early on the first night of Shabu'ot. And this continues to be practiced by many community Rabbis today including H Yom Tob Yedid A"H, the former Chief Rabbi of Halab. So although the custom of waiting until nightfall to make Qiddush was recorded by several Sephardic Rabbis, the custom of Halab is based on the rulings of Maran and HaRambam that do not require one to wait until nightfall to make Qiddush on the first night of Shabu'ot.